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Case Number: 25CHCV02903 Hearing Date: September 2, 2026 Dept: F43

Dept. F43

Hearing Date: 09-02-26

Case # 25CHCV02903, Garlinghouse

v. Park Burnet Townhomes South Homeowners, et al.

Trial Date: 04-09-29

MOTION TO COMPEL

FURTHER RESPONSES TO FORM INTERROGATORIES

MOVING PARTY: Defendant Park Burnet Townhomes South Homeowners Association

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order compelling plaintiff to serve further responses to defendant Park Burnet's first set of form interrogatories numbers 2.1-2.11, 4.1, 6.1-6.7, 8.1-8.9, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, and 14.1-14.2 and imposing \$800 in monetary sanctions against plaintiff and his counsel of record.

RULING: Motion is granted in part and denied in part as described below in Section A. The court awards defendant Park Burnet \$800 in monetary sanctions.

SUMMARY OF ACTION

Plaintiff Timothy Garlinghouse (Plaintiff)

filed this premises liability action against defendants Park Burnet Townhomes South Homeowners Association (Park Burnet) and Ross Morgan & Company, Inc.

on August 15, 2025, asserting negligence, premises liability, and breach of contract. A First Amended Complaint was

filed on January 30, 2026. Park Burnet

is a residential owner's association for condominium development located at

8800 Burnet Avenue, Unit 12, in North Hills, CA 91343. Plaintiff alleges he was a resident and homeowner of Unit 12. On August 15, 2023,

Plaintiff slipped and fell on plant material while he descended the stairs in the common area of the subject property.

Plaintiff claims the plant material had encroached onto the steps as a

result of poorly and inadequately maintained landscaping. Park Burnet served an answer with co-defendant Ross Morgan on February 10, 2026.

On February 10, 2026, Park Burnet

electronically served Plaintiff with its first set of form

interrogatories. (Declaration of Wendy

D. Rossnagel ¶ 3, Exh. A.) After being

provided two deadline extensions, Plaintiff served objection-only responses on

April 28, 2026. (Id. ¶ 4, Exh. B,

Exh. C at p. 1.) Defense counsel

attempted to meet and confer with Plaintiff's counsel by letter (sent May 1,

2026 and requesting objection-free responses by May 11, 2026) and May 15, 2026

(telephone), but defense counsel was not available to speak. (Id. ¶¶ 5-6, Exh. C.) On May 18, 2026, Plaintiff's counsel

responded to the letter, indicating further responses would be provided without

stating a specific response date. (Id.

¶ 7.) According to Park Burnet, no

further responses were served as of June 15, 2026. (Id. ¶ 8.)

On June 15, 2026, defendant Park Burnet filed

the instant motion to compel Plaintiff's further verified responses to its

first set of form interrogatories numbers 2.1-2.11, 4.1, 6.1-6.7, 8.1-8.9,

9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, and 14.1-14.2 within 20 days of the

September 2, 2026, motion hearing.

Defendant Burnet also asks the court to impose \$800 in monetary

sanctions against Plaintiff and his counsel of record. No opposition was filed.

MEET AND CONFER

A motion to compel further responses to form interrogatories must include a declaration stating facts showing a “reasonable and good faith attempt” to resolve the issues mentioned in the motion before filing. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).) In Department F43, meet and confer means in person or via phone. A letter or email does not suffice. (Department F43 Courtroom Information, p. 2.)

Based on the May 1 and 18, 2026, emails and the May 15, 2026 phone call attempt, the court finds the “meet and confer” requirement is met.

ANALYSIS

A. Compelling Further Responses to Form Interrogatories

A demanding party may move to compel further responses to form interrogatories where the demanding party fails to respond or responds with objections or incomplete answers. (Code Civ. Proc., §§ 2030.290, 2030.300.) The demanding party must serve the motion to compel further within 45 days after service of verified responses, unless the parties agree, in writing, to extend the time to file. (Code Civ. Proc., § 2030.300, subd. (c).) If the responding party serves unverified responses, the 45-day time limit does not run until verified responses are served. (See *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 135-136.)

Each interrogatory response must be complete and straightforward and contain (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.220, subd. (a).) Responses containing objections must state the specific ground for the objection. (Code Civ. Proc., § 2030.240,

subd. (b).)

Interrogatory responses that require references to another document must be identify the document, and the document's contents must be summarized so that the responses are fully responsive. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783-84.) If the interrogatory seeks information contained in files and records that requires compiling or summarizing the information in the records, the responding party may allow the demanding party to inspect and copy such records. (Code Civ. Proc., § 2030.230; Deyo, supra, 84 Cal.App.3d at p. 784.) The response must be timely, refer to section 2030.230, and specify the documents from which the answer may be derived. (Code Civ. Proc., §§ 2030.230, 2030.290, subd. (a).)

Defendant Park Burnet properly served its form interrogatories and granted Plaintiff two extensions to serve responses. Plaintiff provided identical objection-only responses to each form interrogatory:

OBJECTION. This interrogatory is overly broad, indefinite as to time and without reasonable limitation in its scope. West Pico v. Superior Court (1961) 56 Ca1.2d 407. Vague, ambiguous, lack of foundation, calls for speculation, compound, calls for legal conclusion. This interrogatory seeks information, the disclosure of which would violate the state and federal privacy rights of Responding party, including the right to privacy as protected by Article 1, Section 1 of the California Constitution, statutory rights to privacy, and common-law privileges pertaining to the disclosure of personal and confidential information. In addition, this request violates California's taxpayer privilege. Responding party objects to this interrogatory to the extent it calls for the disclosure of information that is protected by the attorney-client privilege and the attorney work product doctrine, or to the extent it seeks to obtain the legal impressions, materials and assessments of counsel for Responding party, or those of experts who have not been designated pursuant to California Code of Civil Procedure section 2034.010 et seq.

Plaintiff represented that his counsel was working diligently to finalize and serve further responses, but no further responses have been served.

Defendant Park Burnet now seeks further, verified

responses to form interrogatory numbers 2.1-2.11, 4.1, 6.1- 6.7, 8.1-8.9, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, and 14.1-14.2.

Form interrogatories 2.1 through 2.11 seek background information about Plaintiff such as contact information, employment at the time of the alleged incident, and Plaintiff's place of birth. Form interrogatory 4.1 seeks information concerning Plaintiff's liability and medical insurance coverage at the time the incident occurred. Form interrogatories 6.1 through 6.7 seek information concerning the injuries Plaintiff attributes to the subject incident, Plaintiff's treatment for the injuries, and health care providers who treated Plaintiff's injuries and advised the injuries require future treatment.

Form interrogatories 8.1 through 8.9 seek information directly relevant to damages – whether the incident has affected Plaintiff's earning capacity or caused him to lose income.

Form interrogatories 9.1 and 9.2 asks Plaintiff to discuss other damages he claims arose from the incident and to identify documentation supporting the existence and amount of the "other" damages.

Form interrogatories 10.1 through 10.3 asks about injuries which predate the incident as well as injuries that arose after the incident but that are similar to the injuries Plaintiff claims from the incident. Form interrogatories 11.1 through 11.2 seek information concerning other actions, written claims or demands for compensation of personal injuries and workers' compensation benefits in the 10 years prior to the filing of this action.

Form interrogatories 12.1 through 12.7 seek information about any investigation of the incident on Plaintiff's behalf, except for expert witnesses covered by Code of Civil Procedure section 2034. The information includes the names of persons who witnessed the incident, persons who provided a written or recorded statement of the incident, and Plaintiff's knowledge of photographs and other potential fact evidence of the incident.

Form interrogatories 14.1 through 14.2 seek information concerning whether any person involved in the underlying incident violated statutes or regulations, whether the violation proximately caused the incident, and whether any individual was charged with violation of a statute, ordinance, or regulation as a result of the underlying incident.

After reviewing the responses and Park Burnet's separate statement, the court finds that most of Plaintiff's objections to the form

interrogatories lack merit.

1. Overly

Broad, Indefinite as to Time and Without Reasonable Limitation in Its Scope, Vague, Ambiguous, Compound

After reviewing the form interrogatories at issue, the court finds that the overly broad, indefinite in time and scope, vague, ambiguous, and compound objections lack merit as to form interrogatories 2.1-2.11, 4.1, 6.1- 6.7, 8.1-8.9, 9.1-9.2, 10.2-10.3, 11.1-11.2, 12.1-12.7, and 14.1-14.2. Thus, the court overrules the objections as to form interrogatories 2.1-2.11, 4.1, 6.1- 6.7, 8.1-8.9, 9.1-9.2, 10.2-10.3, 11.1-11.2, 12.1-12.7, and 14.1-14.2.

However, the court does find that interrogatory number 10.1 is indefinite as to time: “At any time before the INCIDENT did you have complaints or injuries that involved the same part of your body claimed to have been injured in the INCIDENT? If so, for each state: (a) a description of the complaint or injury; (b) the dates it began and ended; and (c) the name, ADDRESS, and telephone number of each HEALTH CARE PROVIDER whom you consulted or who examined or treated you.”

As phrased, this interrogatory can reach back in time indefinitely to all injuries predating the incident whether the injury occurred the year before the incident or 50 years before the incident. Thus, the court sustains in part the “indefinite in time” objection to form interrogatory number 10.1 and orders any further response be limited to the “10 years before the date of the subject incident.”

2. Lack of Foundation, Calls for Speculation, Calls for Legal Conclusion

After reviewing each interrogatory, the court finds Plaintiff's lack of foundation, calls for speculation, and calls of legal conclusion objections lack merit as to form interrogatory numbers 2.1-2.11, 4.1, 6.1-6.7, 8.1-8.9, 9.1-9.2, 10.1-10.3, 11.1 11.2, 12.1-12.7, and 14.1-14.2.

In *Singer v. Superior Court* (1960), the California Supreme Court established the foundation “contention interrogatory rule” – the parties must answer interrogatories concerning “facts underlying the

contentions of the parties.” (Singer v. Superior Court (1960) 54 Cal.2d 318, 323-324 [allowing parties to determine what their opponents’ contends are and what facts support those contentions]; Universal Underwriters Ins. Co. v. Superior Court (1967) 250 Cal.App.2d 722, 728-732; Burke v. Superior Court (1969) 71 Cal.2d 276, 282-286 [distinguishing attempt to ascertain an opponent’s legal reasoning from the attempt to ascertain an opponent’s contentions].)

Form interrogatory number 14.1 does ask whether Plaintiff contends any person involved in the incident violated the law and whether that violation was a legal/proximate cause of underlying incident. However, interrogatory number 14.1 does not ask for a legal conclusion or for Plaintiff or his counsel’s legal reasoning. The interrogatory asks whether Plaintiff contends a negligence per se theory of liability and to identify the person who committed legal violation and to identify the law Plaintiff alleges the person violated. This interrogatory falls squarely within the scope of “contention interrogatory rule.”

Therefore, the court overrules all three objections as to form interrogatory numbers 2.1-2.11, 4.1, 6.1-6.7, 8.1-8.9, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, and 14.1-14.2.

3. Right to Privacy for Plaintiff

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. . . . The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 552, [citing Hill v. National Collegiate Athletic Ass’n (1994) 7 Cal.4th 1, 35-37].) If the party asserting a privacy right fails to satisfy all three requirements, the court need not proceed to the fourth step of balancing competing interests. (See id. at 555.)

Although Plaintiff raises several bases for privacy protections, Plaintiff does not state in what information or documents he has a legally protected interest.

In reviewing the interrogatories at issue, the court finds that Plaintiff has privacy interests in her medical files and history and employee personnel files and history. (See *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1249-1250.) Former and current corporate employees have a legitimate expectation of privacy as to personal information they provide to employers—telephone numbers and addresses—as a condition of employment. (Id. at p. 1252.) Where the requested discovery is personal (i.e., contact information), rather than sensitive (i.e., medical or financial details, political affiliations, sexual relationships, or personnel information), sharing the information is not a serious invasion of privacy; it is basic civil discovery. (Id. at pp. 1253-1254.) Information such as addresses and telephone numbers—the location of witnesses—“is generally discoverable, and it is neither unduly personal nor overly intrusive.” (Id. at p. 1254 [citing *Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 373].) Any such intrusion is less significant where the party withholding the information has already disclosed the identity of the witnesses. (Id. at p. 1254.)

However, not all employment-related information qualifies as sensitive personal data warranting privacy protection. (See *International Federation of Professional & Technical Engineers, Local 21, AFL-CIO v. Superior Court* (2007) 42 Cal.4th 319, 342-346 [distinguishing between personal information in a personnel file versus information arising out of the employment relationship such as salary information for peace officers].)

Here, the interrogatories seek information about Plaintiff's employment status at the time of the incident, his employer, his monthly income, and potential future earning capacity. This is relevant to determining the amount of damages owed to Plaintiff for “loss of income” and “loss of earning capacity.” This is a legitimate and important litigation interest which outweighs Plaintiff's privacy interest as Plaintiff has put his loss of income and earning capacity at issue by filing this action and seeking both as damages. (See Compl. ¶¶ 20, 28, 35.)

Next, a plaintiff who files a lawsuit for damages arising from a personal injury puts the injury and its related body parts in controversy. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 389-390.) However, the privacy right waiver created by filing a lawsuit “must be narrowly rather than expansively construed.” (Id. at p. 842.) “[A]n implicit waiver of a party’s constitutional rights encompasses only discovery directly relevant to the plaintiff’s claim and essential to the fair resolution of the lawsuit.” (Id.)

When a plaintiff claims damages for injuries or loss of wages in a personal injury case, medical history related to the affected body parts is relevant evidence regarding causation and the extent of damages attributable to the defendant’s conduct. (See People v. Gillard (1997) 57 Cal.App.4th 136 [stating “accurate medical history” could provide an alternative explanation for the cause of a knee condition].) A party may demonstrate a preexisting disability for the body parts at issue by presenting evidence such as “testimony by the worker concerning actual disability before the injury, complaints to coworkers or physicians before the industrial injury, treatment to the same part of the body before the injury, measurable preexisting loss of functioning, or other similar evidence demonstrating actual preexisting disability.” (See Dittler v. Workers’ Comp. Appeals Bd. (1982) 131 Cal.App.3d 803, 814-815, fn. 8.)

Thus, the legitimate interest in determining the damages owed to Plaintiff also outweighs Plaintiff’s privacy interest in information concerning Plaintiff’s injuries predating the incident (See interrogatory number 4.1) as Plaintiff has put his injuries and the facts surrounding the incident at issue by filing this action.

Therefore, the court overrules Plaintiff’s privacy objections.

4. The Taxpayer Privilege

The taxpayer privilege is an implied evidentiary privilege that protects taxpayers from being compelled to disclose their tax

returns and the information contained in them in civil proceedings, administrative proceedings, and other non-tax-enforcement contexts.

“[I]t is a misdemeanor for the Franchise Tax Board or any member thereof, or any deputy, agent, clerk, or other officer or employee of the state, including its political subdivisions, or a jury commissioner, or any former officer or employee or other individual, who in the course of their employment or duty has or had access to returns, reports, or documents required to be filed under this part, to disclose or make known in any manner information as to the amount of income or any particulars, including the business affairs of a corporation, set forth or disclosed therein.” (Rev. & Tax Code, § 19542.) Although Section 19542 is directed at government officials and employees, the California Supreme Court held the prohibition creates an evidentiary privilege for the taxpayer and is directed at private individuals as well. (*Webb v. Standard Oil Co. of Cal.* (1957) 49 Cal.2d 509; *Schnable v. Superior Court* (1993) 5 Cal.4th 704 [protecting tax returns, personal income, corporate, income, payroll, employment, and sales tax returns and the information contain in those returns and tax related documents].)

Form interrogatory numbers 8.1 through 9.2 seek information about Plaintiff's claimed damages.

Plaintiff seeks damages for “loss of earnings” and the interrogatories ask Plaintiff to state his monthly income at the time of the incident, and the total income lost and that will be lost due to the incident. (FAC ¶¶ 20, 28, 35.) This is directly relevant to Plaintiff's claims and is necessary to determine Plaintiff's damages for lost income and earning capacity. Furthermore, Plaintiff makes no mention of why his federal or state tax returns would be needed to be produced in order to provide this information when other non-tax-return documents could provide the requested information.

Because Plaintiff fails to oppose this motion or provide a further explanation as to how the taxpayer privilege applies to the form interrogatories, the court finds the objection is merely boilerplate and without merit.

Therefore, the court overrules Plaintiff's “taxpayer privilege” objection as to form interrogatory numbers 2.1-2.11, 4.1, 6.1-6.7, 8.1-8.9, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, and 14.1-14.2.

5. Obtaining

the legal impressions, materials and assessments of experts who have not been designated pursuant to California Code of Civil Procedure section 2034.010 et seq.

The court finds that this objection is boilerplate and lacks merit, considering the form interrogatories which could call for an expert opinion expressly state “except form expert witnesses covered by Code of Civil Procedure sections 2034.210-2034.310.”

(Form Interrogatory Numbers 6.4 12.1(d), 12.5, and 12.7(a).)

Moreover, Park Burnet does not seek a medical diagnosis analysis or a causation analysis. Park Burnet asks whether any specific providers treated Plaintiff for injuries he attributes to the underlying incident, what the treatment was, whether Plaintiff or any individual acting on Plaintiff's behalf claims knowledge of the incident, and whether Plaintiff or anyone acting on Plaintiff's behalf inspected the scene of the underlying incident. No expert opinion or analysis is required to respond to these inquiries or to provide the relevant underlying facts.

Thus, the court overrules Plaintiff's “expert” objections.

6. Attorney-client

privilege and attorney work-product doctrine

Finally, Plaintiff raises the attorney-client privilege and work-product doctrine objections to every form interrogatory without providing adequate facts for the court to determine whether the form interrogatories seek privileged information or attorney work product.

If Plaintiff believes the form interrogatory categories seek information, documents, or communications which are protected by the attorney-client privilege or the work-product doctrine, Plaintiff must produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. (See also Code Civ. Proc., § 2030.240, subds. (b).)

Therefore, the court grants in part defendant Park Burnet Townhomes South Homeowners Association's motion to compel plaintiff Timothy

Garlinghouse's further responses to its first set of form interrogatories numbers 2.1-2.11, 4.1, 6.1- 6.7, 8.1-8.9, 9.1-9.2, 10.2-10.3, 11.1 11.2, 12.1-12.7, 14.1-14.2. The motion is denied in part and granted in part as to form interrogatory number 10.1 as described above in Section A.1.

Plaintiff is ordered to serve further, verified responses to form interrogatory numbers 2.1-2.11, 4.1, 6.1- 6.7, 8.1-8.9, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, and 14.1-14.2 within thirty (30) days of the issuing of this order, except those responses which Plaintiff claims are protected by the attorney-client privilege or the attorney-work product doctrine.

For those responses Plaintiff claims the attorney-client privilege and work-product doctrine applies, Plaintiff is ordered to produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. The privilege log must be served with the further responses. The initial failure to provide an adequate privilege log may result in monetary sanctions, and subsequent failures to comply may result in issue or evidentiary sanctions.

B. Sanctions

Defendant Park Burnet asks the court to impose \$800 in monetary sanctions against Plaintiff and his counsel of record. (Rossnagel Decl. ¶ 9.)

The court must impose monetary sanctions against a party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.
(Code Civ. Proc., § 2030.300, subd. (d).)

Park Burnet is entitled to sanctions because most of Plaintiff's objections are boilerplate and without merit. The court notes that Plaintiff's counsel emailed defense counsel on May 18, 2026, claiming the delay in further responses was due to counsel's aunt's long ICU hospitalization and death in April of 2026 and two back-to-back trials.
(Rossnagel Decl., Exh. C at p. 2.)
However, Plaintiff's counsel has provided no date by which further

responses would be served, an opposition to the instant motion, or provided defense counsel with an extension to file a motion to compel further. Therefore, the court finds that Plaintiff provides no substantial justification for the lack of responses and does not demonstrate imposing sanctions would be unjust.

Defendant Park Burnet's counsel charges \$185 per hour. (Rossnagel Decl. ¶ 9.) The request includes 2.0 hours preparing the motion; 2.0 hours traveling to and appearing at the motion hearing; and a \$60 filing fee. (Ibid.)

The court finds the hourly rate and the requested time and filing fee are reasonable.

Therefore, the court grants defendant Park Burnet \$800 in monetary sanctions.

CONCLUSION and ORDER

1. Motion

to compel further responses to defendant Park Burnet's first set of form interrogatories is granted in part and denied in part as described above in Section A.

2. Plaintiff is

ordered to serve further, verified responses to form interrogatory numbers 2.1-2.11, 4.1, 6.1- 6.7, 8.1-8.9, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, and 14.1-14.2 within thirty (30) days of the issuing of this order, except those responses which Plaintiff claims are protected by the attorney-client privilege or the attorney-work product doctrine.

3. For

those responses Plaintiff claims the attorney-client privilege and work-product doctrine applies, Plaintiff is ordered to produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. The initial failure to provide an adequate privilege log may result in monetary sanctions, and subsequent failures to comply may result in issue or evidentiary sanctions. The privilege log must be served with the further responses.

4. The

court awards defendant Park Burnet \$800 in monetary sanctions. Plaintiff and his counsel are ordered to pay defendant Park Burnet's counsel within thirty (30) days of the issuing of this order.

Defendant Park Burnet Townhomes South Homeowners
Association to give notice.